

PLJ 2024 Lahore (Note) 84
[Multan Bench, Multan]

Present: MASUD ABID NAQVI, J.

ABDUL KHALIQ--Petitioner

versus

ADDITIONAL DISTRICT JUDGE, KABIRWALA, DISTRICT
KHANEWAL and another--Respondents

W.P. No. 14839 of 2015, decided on 9.10.2017.

Civil Procedure Code, 1908 (V of 1908)--

----O.XVI R. 1(2)--Non-filing of list of witnesses--Application for submission of list of witnesses by respondent--Accepted--Civil revision--Accepted--Discretion of Court--Conduct of petitioner--It is discretion of Court to grant permission to produce witnesses other than those contained in list provided by a party but subject to reasons to be recorded in writing--Petitioner failed to file list of witnesses--Thereafter petitioner filed an application to submit list of witnesses after six months of framing of issues--In any case, a party in default cannot as a matter of right or as a matter of course without assigning or establishing any good cause for omission, ask for summoning or even to produce witnesses only on account of a lame excuse and a bald assertion that, it shall be in interest of justice and/or it shall facilitate Court in deciding matter--Conduct of the petitioner with respect to filing of list of witnesses has remained non-serious and negligent--Counsel for **petitioner has not been able to point out** any unavoidable circumstances due to which he could not file list of witnesses, so he is not entitled to any relief--Petition dismissed.

[Para 3] A, B, C & D

PLD 2013 SC 255 and 2015 SCMR 1 *ref.*

Mr. Kanwar Muhammad Younas Advocate for Petitioner.

Ch. Muhammad Sohail Anjum, Advocate for Respondents.

Date of hearing: 9.10.2017.

ORDER

Brief facts of this case are that Respondent No. 2/plaintiff filed a suit for declaration which was contested by the petitioner/defendant by filing written statement and out of divergent pleadings of the parties issues were framed on 29.10.2014 and parties were directed to file list of witnesses within seven days. The plaintiff/respondent filed list of witnesses within time whereas petitioner/defendant did not file list of witnesses within stipulated time. Thereafter, the petitioner/ defendant filed an application for filing list witnesses which was duly contested and after hearing both sides the same was accepted *vide* order dated 06.05.2015. Feeling aggrieved,

respondent/plaintiff filed civil revision and the same was accepted *vide* order dated 11.09.2015. Being dissatisfied, instant writ petition has been preferred and the validity of judgment dated 11.09.2015 has been challenged.

2. I have heard the arguments of learned counsel for the petitioner and perused the record.

3. In order to resolve the proposition(s) involved in the matter and to enunciate the true import and purport of Order XVI, Rule 1, CPC it seems expedient to reproduce the same which reads as below:

1. Summons to attend to give evidence or produce document--(1)

Not later than seven days after the settlement of issues, the parties shall present in Court a [certificate of readiness to produce evidence, alongwith a] list of witnesses whom they propose to call either to give evidence or to produce documents.

(2) A party shall not be permitted to call witnesses other than those contained in the said list, except with the permission of the Court and after showing good cause for the omission of the said witnesses from the list; and if the Court grants such permission, it shall record reasons for so doing.

(3)-----

The language of Rules 1 and 2 of Order XVI CPC clearly stipulates that the parties shall present in Court a certificate of readiness to produce evidence alongwith a list of witnesses whom they propose to call either to give evidence or to produce documents but not later than seven days after the settlement of issues and a party shall not be permitted to call witnesses other than those contained in the said list except with the permission of the Court after showing good cause for the omission of the witnesses from the list and the Court shall record reasons while allowing such like application. It is discretion of the Court to grant permission to produce witnesses other than those contained in the list provided by a party but subject to reasons to be recorded in writing.

In the case in hand, perusal of record reveals that issues were framed on 29.10.2014 and it was ordered that list of witnesses be submitted within seven days. The plaintiff/respondent filed list of witnesses within time but the petitioner/defendant failed to file list of witnesses. Thereafter petitioner/defendant filed an application to submit list of witnesses on 29.04.2015 after six months of the framing of issues on 29.10.2014. The petitioner/defendant has not been able to make out a good cause for not filing the list of witnesses within the purview of Order XVI Rule 1(2) CPC. The party in default has to show a legally sufficient reason, why a request should be granted or the inaction/omission should be excused, in other words the judicial conscious of the Court should be satisfied with justifiable reasons. In any case, a party in default cannot as a matter of right or as a matter of course without assigning or establishing any good cause for the omission, ask for the calling/summoning or even to produce the witnesses only on account of a

lame excuse/reason and a bald assertion that, it shall be in the interest of justice and/or it shall facilitate the Court in deciding the matter. Reference is made to *Muhammad Anwar and others vs. Mst. Ilyas Begum and others* (PLD 2013 Supreme Court 255).

In the case in hand, good cause is absolutely lacking within the purview of sub-Rule 2 of Order XVI Rule 1 CPC because the only reason/cause of non-filing of list of witnesses in time is written in application as “سبواً طور پر لسٹ گواہان داخل نہ کر سکا”. The conduct of the petitioner/defendant with respect to filing of list of witnesses has remained non-serious and negligent. Learned counsel for **petitioner/ defendant has not been able to point out** any unavoidable/ compelling circumstances due to which he could not file list of witnesses, so he is not entitled to any relief.

4. With respect to interference in the findings of appellate Court where there is inconsistency between the trial Court and appellate Court, the Hon’ble Supreme Court of Pakistan in a case reported as *Amjad Ikram vs. Mst. Asiya Kausar* (2015 SCMR 1) held that:

“Even otherwise, in case of inconsistency between the learned trial Court and the appellate Court, the latter must be given preference in the absence of any cogent reason to the contrary, as has been held by this Court in judgements reported as Madan Gopal and 4 other vs MaranBipari and 3 others (PLD 1969 SC 617 and Mohammad Nawaz through LRs vs Haji Mohammad Baran Khan through LRs and others (2013 SCMR 1300)

5. Neither any misreading or non-reading of evidence on record nor any infirmity, legal or factual, has been pointed out in the impugned judgment passed by the learned appellate Court, therefore, this petition is **dismissed**.

(Y.A.) Petition dismissed